

		arbitration Final Award dated February 2, 2025, is attached as Attachment 8(c). As the Petition complies with Code of Civil Procedure section 1285.4, and there has been no response to the Petition, the Petition is GRANTED and the arbitrator's Final Award is CONFIRMED. (Code Civ. Proc., § 1286.) Petitioner's counsel is ordered to submit a proposed judgment and give notice of this ruling.
5.	<i>Vista Point Trust I, a Delaware statutory trust vs. Optionwide Financial Corporation</i> 2026-01553437	Before the court is the unopposed petition to confirm arbitration award filed by petitioner Vista Point Trust I (Petitioner). As more fully set forth below, the petition is GRANTED. The court first notes, although timely served, the petition was prematurely filed pursuant to Code of Civil Procedure section 1288.4. The court nonetheless will proceed on the merits as respondent Optionwide Financial Corporation (Respondent) did not file any opposition, failed to establish any prejudice due to the premature filing, and expressly waived the right to challenge entry of judgment based on the stipulated arbitration award. A petition to confirm, correct, or vacate the award must: (1) set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., § 1285.4.) If a petition or response under this chapter is duly served and filed, the court must confirm the award as made, whether rendered in this state or another state, unless it corrects the award and confirms it as corrected, vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286.) Except for prematurely filing the Petition, Petitioner has complied with the requirements of the code. The arbitrator awarded Petitioner the sum of \$709,625.85 against Respondent. (Petition § 8, Ex. 8c.) Respondent waived any right to oppose the petition or contest a judgment thereon. (Petition § 8, Ex. 8c section 3.) The court will confirm the \$709,625.85 amount. Petitioner requested interest from the March 2, 2026, date the award was issued to the date of the May 21, 2026 hearing on the petition. This is permissible. (Civ. Code, § 3287; <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27.)

		The court will award interest at the rate of \$194.42/day x 80 days for a total of \$15,553.44. Petitioner also requests \$435.00 in costs for the initial filing fee in this action, which is recoverable. (Code Civ. Proc., § 1293.2; <i>Austin v. Allstate Ins. Co.</i> (1993) 16 Cal.App.4th 1812, 1814.) Based on the foregoing, the petition is GRANTED and the relief described above may be included in the judgment confirming the award. Although Petitioner checked the box in the petition to seek an award of attorney fees, Petitioner also checked the box stating according to proof. Petitioner has not otherwise expressly sought attorney fees in any particular amount, has not cited any specific contractual provision authorizing an award of attorney fees, and has not submitted any evidence as to the amount of attorney fees incurred. As such, the court has not awarded any attorney fees at this time. To the extent any are sought for the court proceedings (as opposed to the arbitration proceedings), they will have to be sought through a post judgment motion. Counsel for Petitioner is ordered to submit a proposed judgment and to give notice of this ruling.
6.	<i>Rudat vs. Liu</i> <i>2026-01546329</i>	Before the court is the petition to vacate the arbitration award filed by petitioner Fred Rudat (Petitioner), and the opposition filed by respondent Di Liu (Respondent) seeking to confirm the same arbitration award. Specifically, Petitioner seeks to vacate the final arbitration award issued by arbitrator Michael J. Lancaster of Judicial Dispute Resolution served on the parties on October 27, 2025. In response, Respondent seeks confirmation of the award. For the reasons set forth below, the petition to vacate the award is DENIED and the request to confirm the award is GRANTED. Under the California Arbitration Act, Code of Civil Procedure section 1281.2 et. seq. (CAA), any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (<i>Ibid.</i>) A petition to correct or vacate an award must be served and filed within 100 days after the date the petitioner was served with a signed copy of the award. (Code Civ. Proc., § 1288; <i>Douglass v. Serenivision, Inc.</i> (2018) 20 Cal.App.5th 376,